

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----
DMITRY MESENER,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, SERGEANT DAVID
FURMAN OF THE 60TH PCT, POLICE OFFICER
KELLIE HUGHES OF THE 60TH PCT, AND
POLICE OFFICER ELMORE MCDONALD,
SHIELD NO. 19131 OF THE 60TH PCT,Defendants.

X

SUMMONS

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Index No.: _____

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Date Filed: _____

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Plaintiff designates

:

Kings County
as the place of trial

:

The basis of venue is based on
CPLR § 504(3)

:

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X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York
November 5, 2019

Scott Kim, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
DMITRY MESENER
26 Broadway, 27th Floor
New York, New York 10004
(212) 500-3273
File No.: FA-7229-LK

Defendants' Addresses:

CITY OF NEW YORK, Claim No.: 2018PI030866, 100 Church Street, New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT, One Police Plaza, New York, NY 10038

POLICE OFFICER THOMAS ENDERS, Tax No. 954771 OF THE 107TH PCT, 7101 Parsons Blvd., Flushing, NY 11365

SERGEANT DAVID FURMAN OF THE 60TH PCT, 2951 W 8th Street, Brooklyn, NY 11224

POLICE OFFICER KELLIE HUGHES OF THE 60TH PCT, 2951 W 8th Street, Brooklyn, NY 11224

POLICE OFFICER ELMORE MCDONALD, SHIELD NO. 19131 OF THE 60TH PCT, 2951 W 8th Street, Brooklyn, NY 11224

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DMITRY MESENER,

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-against-

CITY OF NEW YORK, NEW YORK CITY
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FURMAN OF THE 60TH PCT, POLICE OFFICER
KELLIE HUGHES OF THE 60TH PCT, AND
POLICE OFFICER ELMORE MCDONALD,
SHIELD NO. 19131 OF THE 60TH PCT,

Defendants.

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VERIFIED COMPLIANT

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Index No.:

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DMITRY MESENER (hereinafter the "Plaintiff"), by his attorneys, LEBEDIN KOFMAN, LLP, complaining against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SERGEANT DAVID FURMAN OF THE 60TH PCT, POLICE OFFICER KELLIE HUGHES OF THE 60TH PCT, AND POLICE OFFICER ELMORE MCDONALD, SHIELD NO. 19131 OF THE 60TH PCT, (hereinafter collectively "Defendants"), upon information and belief, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violation of his rights under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution.

PARTIES

2. At all relevant times, Plaintiff was and is a resident of Kings County, City and State of New York.

3. At all relevant times, Defendant CITY OF NEW YORK (hereinafter the “City”) was and is a municipal corporation incorporated and existing under the laws of the State of New York.

4. At all relevant times, the New York City Police Department (hereinafter “NYPD”) was and is an agency of Defendant City.

5. At all relevant times, Defendant City operated, controlled and managed the NYPD.

6. At all relevant times, Defendant SERGEANT DAVID FURMAN of the NYPD 60th Precinct (hereinafter “Sgt. Furman”) was an officer, agent, and/or employee of Defendant City.

7. At all relevant times, Defendant POLICE OFFICER KELLIE HUGHES of the NYPD 60th Precinct (hereinafter “P.O. Hughes”) was an officer, agent, and/or employee of Defendant City.

8. At all relevant times, the Defendant POLICE OFFICER ELMORE MCDONALD, Shield No. 19131 of the NYPD 60th Precinct (hereinafter “P.O. McDonald”) was an officer, agent, and/or employee of Defendant City.

9. At all relevant times, Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald were each individually hired, trained, supervised and retained by Defendant City, including its agencies, and all supervisory officers, agents, employees, and/or contractors of Defendant City.

10. At all relevant times, Defendants were involved in violating Plaintiff’s rights, and individuals who acted in concert with them to do so, acted or failed to act, as alleged herein, toward Plaintiff under color of the statutes, ordinances, customs, policies, procedures, rules, and/or usage of the State and City of New York, and within the scope of their employment.

11. Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald are sued herein in both their individual and official capacities.

FACTS

12. The facts alleged in this complaint are based upon the personal observations of Plaintiff regarding events that took place in his presence, and upon information and belief, the sources thereof are documents prepared in connection with the arrest of Plaintiff and public documents and information relating thereto which are presently available to Plaintiff. The aforesaid documentary evidence is presently incomplete, as it does not include numerous documents and exhibits; therefore, the complaint has been prepared without the benefit of full discovery.

Timeliness and Notice of Claim

13. Plaintiff filed a Notice of Claim (*see* Exhibit “A” annexed hereto) in accordance with General Municipal Law Section 50-e and 50-I on or about October 30, 2018. The Notice of Claim set forth the name and address of Plaintiff, his attorneys the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

14. At least thirty (30) days has passed since service of the Notice of Claim, and payment of the claim has been either refused or neglected.

15. A General Municipal Law Section 50-h hearing was held on or about April 30, 2019.

16. This action is being commenced within one year of the dates of which all claims accrued.

17. Plaintiff has complied with all conditions precedent to maintain this action.

18. All state causes of action pleaded herein fall within one or more of the exceptions set forth in New York Civil Practice Law & Rules Section 1602 with respect to joint and several liability.

The Incident of August 8, 2018

19. On or about August 8, 2018, at or near 2970 Cropsey Avenue, in the County of Kings, City and State of New York, at approximately 8:30 p.m., Plaintiff was wrongfully and unlawfully searched, seized, detained, and arrested by Defendants, their agents, servants, and/or employees, without probable cause or justification, causing Plaintiff to be unlawfully detained for a period of approximately sixteen (16) hours (hereinafter the “Arrest”).

20. At the time of the subject arrest, Plaintiff was detained by an individual employed by Home Depot. Plaintiff was forced to sign a blank piece of paper, the contents of which Plaintiff then never saw again.

21. Defendants P.O. Hughes and P.O. McDonald arrived at 2970 Cropsey Avenue at some point, and the individual employed by Home Depot conversed at length with one of the officers. The officer instructed the Home Depot employee on how to fill out the paper signed by Plaintiff to properly allege a criminal complaint.

22. Plaintiff tried numerous times to explain the misunderstanding, but Defendants P.O. Hughes and P.O. McDonald did not listen to Plaintiff.

23. After instructing the Home Depot employee on what to write, Defendants P.O. Hughes and P.O. McDonald arrested Plaintiff without probable cause or justification.

24. Defendants, without probable cause or justification, charged Plaintiff with PL § 155.25 Petit Larceny and PL § 165.40 Criminal Possession of Stolen Property in the Fifth Degree.

25. Defendants wrongfully commenced a prosecution (hereinafter the “Prosecution”) against Plaintiff without probable cause or justification under Docket No. CR-036376-18KN, causing Plaintiff to have to appear multiple times to defend himself. On or about October 22, 2018, Plaintiff was granted an Adjournment in Contemplation of Dismissal on all charges. On or about

April 21, 2019, the Kings County Criminal Court dismissed and sealed all criminal charges against Plaintiff.

26. At all times relevant to this action, Defendants acted intentionally, willfully, knowingly, negligently, and with reckless disregard for, and deliberate indifference to, the rights of Plaintiff.

27. The acts of Defendants prior to and during the course of the Arrest and Prosecution of Plaintiff were the direct result of the failure of Defendant City to properly hire, train, supervise, monitor, and discipline its officers, agents, employees and/or contractors.

28. The acts of Defendants prior to and during the course of the Arrest and Prosecution of Plaintiff were the direct result of policies, practices, and customs developed, implemented, enforced, encouraged, sanctioned, or tolerated by Defendant City.

29. As a result of the aforesaid acts or omissions of Defendants, Plaintiff sustained personal, physical, and emotional injuries and losses including, pain and suffering, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, trauma, shock, fear, humiliation, embarrassment, shame, indignity, damage to his reputation, professional and economic losses, and financial costs and expenses including legal fees.

30. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts that may otherwise have jurisdiction.

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CAUSES OF ACTION**STATE CLAIMS****AS AND FOR A FIRST CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
FALSE ARREST AND IMPRISONMENT**

31. The allegations set forth in paragraphs "1" through "30" inclusive are incorporated herein as if fully set forth.

32. Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald intended to cause the wrongful and unlawful arrest and detention of Plaintiff, and wrongfully and unlawfully imprisoned Plaintiff.

33. Defendants intended to restrain or to cause Plaintiff to be restrained and to be deprived of his liberty, and caused him to be taken into police custody, and charged with crimes he did not commit.

34. Defendants knew, or should have known, that the conduct engaged in would result in the wrongful and unlawful arrest and imprisonment of Plaintiff.

35. Plaintiff was aware of such confinement by Defendants and did not consent to said confinement.

36. The aforementioned confinement was not privileged in any way and was without legal justification.

37. Plaintiff was thereafter caused to be incarcerated for approximately sixteen (16) hours.

38. Defendant City is responsible and liable for the acts of Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald done within the scope of their employment under the doctrine of *respondeat superior*.

39. As a direct and proximate cause of Defendants' acts and/or omissions, Plaintiff was caused to suffer great pain and mental anguish, psychological and emotional suffering, great humiliation and fear, and further pecuniary damages including legal fees in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

40. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

AS AND FOR A SECOND CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
NEGLIGENT/INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

41. The allegations set forth in paragraphs "1" through "40" inclusive are incorporated herein as if fully set forth.

42. Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald engaged in extreme and outrageous conduct throughout the course of the Arrest of Plaintiff.

43. Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald caused Plaintiff to fear for his safety during the course of the aforesaid extreme and outrageous conduct.

44. Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald knew, or should have known, that the extreme and outrageous conduct engaged in would result in injury to Plaintiff.

45. Said extreme and outrageous conduct exceeded all bounds usually tolerated by a decent society.

46. The aforesaid extreme and outrageous conduct was performed with the intent to cause, or in disregard of a substantial probability of causing, severe emotional distress to Plaintiff.

47. Such extreme and outrageous conduct caused Plaintiff to suffer severe and debilitating mental anguish and emotional distress which had a disabling effect on Plaintiff.

48. Defendant City is responsible for and liable for the acts of Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald done within the scope of their employment through the doctrine of *respondeat superior*.

49. As a direct and proximate cause of Defendants' intentional infliction of emotional distress on Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages including legal fees in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

50. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders the Defendants liable to Plaintiff for punitive damages.

AS AND FOR A THIRD CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
NEGLIGENT HIRING, TRAINING, RETENTION AND SUPERVISION

51. The allegations set forth in paragraphs "1" through "50" inclusive are incorporated herein as if fully set forth.

52. That Defendant City failed to exercise reasonable care in hiring, training, retaining, and supervising Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald, thereby breaching its duty to Plaintiff, as well as to the public, to exercise reasonable care in their hiring, training, retaining, and supervising employees.

53. That Defendant City was aware of and should have known of the propensity of Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald to commit injurious acts.

54. That Defendant City was negligent in failing to properly train and supervise its employees, more specifically Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald.

55. Defendant City is responsible and liable for the acts of Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald done within the scope of their employment under the doctrine of *respondeat superior*.

56. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, psychological and emotional suffering, humiliation, embarrassment and fear, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

57. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

AS AND FOR A FOURTH CAUSE OF ACTION
AGASINT ALL DEFENDANTS FOR
NEGLIGENCE/GROSS NEGLIGENCE

58. The allegations set forth in paragraphs "1" through "57" inclusive are incorporated herein as if fully set forth.

59. Defendants' acts and/or omissions in causing the aforesaid false arrest and imprisonment, malicious prosecution, negligent hiring, retention, training, and supervision of its employees, officers, agents, and/or contractors, and negligent infliction of emotional distress were in breach of the duty of due care owed to Plaintiff.

60. Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald acted negligently and in disregard for the procedures and safeguards, which are the standard for the arrest of a citizen, in

arresting Plaintiff in the absence of reasonable suspicion or probable cause. Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald further breached their duty of care to investigate before affecting the seizure of a citizen.

61. That Defendant City is responsible and liable for the acts of Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald done within the scope of their employment under the doctrine of *respondeat superior*.

62. As a direct and proximate cause of Defendants' negligence, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, psychological and emotional suffering, humiliation, embarrassment and fear, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

63. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

FEDERAL CLAIMS

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANT CITY FOR MUNICIPAL LIABILITY "MONELL" CLAIM

64. The allegations set forth in paragraphs "1" through "63" inclusive are incorporated herein as if fully set forth.

65. Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald, individually and collectively, within the scope of their employment and authority and under color of State Law, engaged in conduct which constituted customs, policies, procedures, rules, or usages of the City

and which were in violation of the rights, privileges, and immunities of Plaintiff, a citizen of the United States and resident of the State of New York, as secured by the United States Constitution.

66. The aforesaid customs, policies, procedures, rules, or usages included but were not limited to: failure to properly investigate before effecting an arrest; failure to implement measures to ensure that officers are appropriately supervised by qualified and well-trained staff; and failure to intervene when employees, officers, agents, and/or contractors violate well-established statutory and constitutional rights.

67. The aforesaid unlawful policies and practices in tolerating such misconduct resulted in the subject Arrest rendering Defendant City liable to Plaintiff pursuant to Monell v. City of New York, 436 U.S. 658/91978), and under 42 U.S.C. § 1983.

68. The aforesaid conduct was consistent with the institutionalized practices of the NYPD which were known and previously sanctioned by Defendant City.

69. Despite knowledge of the institutionalized practices of the NYPD, Defendant City took no effective actions to end or prevent such practices.

70. Defendant City had prior notice of the injurious actions and practices of Defendants P.O. Enders and Officers but took no effective actions to end or prevent the aforesaid Defendants from committing such practices.

71. Defendant City had prior notice that Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald had inadequate training regarding the applicable provisions of the Penal Law of the State of New York, Departmental policy, and other applicable laws and federal and state statutory and constitutional protections, but took no effective actions to ensure that he aforesaid Defendants were provided with adequate or appropriate training.

72. Defendant City authorized, tolerated, and ratified the misconduct of employees, officers, agents, and/or contractors, and of Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald, specifically by failing to: discipline employees, officers and agents; take adequate precautions in screening, hiring, educating, informing, training, supervising, promoting, and retaining employees, officers, and agents; and failing to establish and maintain a meaningful system for responding to complaint of misconduct, all of which constitute deliberate indifference by Defendant City to Plaintiff's rights secured by the United States Constitution, and deliberate indifference to the physical safety and well-being of Plaintiff.

73. As a direct and proximate cause of Defendants' acts and/or omissions, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

74. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendant City liable to Plaintiff for punitive damages.

AS AND FOR A SIXTH CAUSE OF ACTION
AGAINST DEFENDANT CITY
PURSUANT to 42 U.S.C. § 1983 (FALSE ARREST)

75. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs "1" through "74" above with the same force and effect as if herein set forth.

76. At all times relevant herein the conduct of the Defendants were subject to 42 U.S.C. §§ 1983, 1985, 1986, and 1988.

77. The detention and arrest of Plaintiff without probable cause and without a lawful warrant was an abuse of power that constituted a seizure within the meaning of the Fourth

Amendment of the United States Constitution and was an act taken by Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald with a deliberate indifference to Plaintiff's rights and privileges. The seizure and deprivation of Plaintiff's liberty was unreasonable and without due process of law, in violation of the Fourth and Fourteenth Amendments of the United States Constitution.

78. Acting under the color of law, Defendants achieved a denial of Plaintiff's rights, privileges or immunities secured by the United States Constitution or by Federal law, to wit:

- a. By depriving Plaintiff of his liberty without due process of law, by taking Plaintiff into custody and holding him there against Plaintiff's will.
- b. By making an unreasonable search and seizure of Plaintiff's property without due process of law.
- c. By conspiring for the purpose of impeding and hindering the due course of justice, with intent to deny Plaintiff equal protection of laws.
- d. By refusing or neglecting to prevent such deprivations and denials to Plaintiff thereby depriving Plaintiff of the rights, privileges, and immunities as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

79. Defendant City negligently trained Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald.

80. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney's fees, damages to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

AS AND FOR A SEVENTH CAUSE OF ACTION
AGAINST DEFENDANT CITY
PURSUANT to 42 U.S.C. § 1983 (DETENTION AND CONFINEMENT)

81. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs “1” through “80” above with the same force and effect as if herein set forth.

82. As a result of Defendants’ concerted unlawful and malicious detention and confinement of Plaintiff, Defendants deprived Plaintiff of both his right to liberty without due process of law and his right to equal protection of the laws, and the due course of justice was impeded in violation of the Fifth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. 1983.

83. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney’s fees, damages to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

AS AND FOR A EIGHTH CAUSE OF ACTION
AGAINST DEFENDANT CITY
PURSUANT to 42 U.S.C. § 1983 (REFUSING OR NEGELECTING TO PREVENT)

84. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs “1” through “83” above with the same force and effect as if herein set forth.

85. At all times relevant to the complaint, Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald, as police officers of Defendant NYPD, were acting under the direction and control of Defendant City.

86. Acting under the color of law and pursuant to official policy Defendants City and NYPD knowingly, recklessly and/or with gross negligence failed to instruct, supervise, control,

and discipline on a continuing basis Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald in their duties to refrain from:

- a. Unlawfully and maliciously harassing a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities;
- b. Unlawfully and maliciously arresting, imprisoning, and prosecuting a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities;
- c. Conspiring to violate the rights, privileges, and immunities guaranteed to Plaintiff by the Constitution and the laws of the United States and the laws of the State of New York;
- d. Otherwise depriving Plaintiff of his constitutional and statutory rights, privileges and immunities.

87. Defendant City had knowledge of or had they diligently exercised their duties to instruct, supervise, control, and discipline on a continuing basis, should have knowledge that the wrongs conspired to be done, as heretofore alleged, were about to be committed. Defendant City had the power to prevent or aid in preventing the commission of said wrongs, could have done so by reasonable diligence, and knowingly, recklessly, or with gross negligence failed or refused to do so.

88. Defendants City and NYPD directly or indirectly under color of law approved or ratified the unlawful deliberate, malicious, reckless, and wanton conduct of Defendants Sgt. Furman, P.O. Hughes, and P.O. McDonald heretofore described.

89. As a direct and proximate cause of the negligent and intentional acts of Defendants City and NYPD as set forth in paragraphs “1” through “83” above, Plaintiff suffered physical injury, loss of income, and severe mental anguish in connection with the deprivations of his constitutional and statutory rights guaranteed by the Fifth and Fourteenth Amendments of the Constitution of the United States and protected by 42 U.S.C. § 1983.

90. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney’s fees, damage to reputation, shame, humiliation, and indignity. All of the said injuries may be permanent.

AS AND FOR A NINTH CAUSE OF ACTION
AGAINST DEFENDANT CITY
PURSUANT to 42 U.S.C. § 1983 (MALICIOUS PROSECUTION)

91. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs “1” through “90” above with the same force and effect as if herein set forth.

92. That Defendants, with malicious intent, arrested Plaintiff and initiated criminal proceedings despite the knowledge that Plaintiff had committed no crime.

93. That all charges against Plaintiff have been dismissed.

94. That there was no probable cause for the arrests and criminal proceedings. That by reason of Defendants’ acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of Plaintiff’s rights, deprived Plaintiff of his liberty when they maliciously prosecuted him and subjected him to unlawful, illegal and excessive detentions, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

95. That upon information and belief, Defendants had a policy and/or custom of maliciously prosecuting individuals despite the lack of probable cause. Thus, as a result of the above described policies and customs, Plaintiff was maliciously prosecuted despite the fact that he had committed no violation of the law.

96. That upon information and belief, the policy and/or custom of Defendant City is to inadequately hire, train, supervise, discipline and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.

97. That as a result of the above described policies and customs, Defendant City, its staff, agents and employees of Defendant City believe that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

98. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant City to the constitutional rights of arrestees and were the cause of the violations of Plaintiff's rights alleged herein.

99. That in so acting, Defendant City abused its power and authority as policymaker of Defendant NYPD under the color of State and/or local law.

100. That upon information and belief, in 2018, Defendant City had a policy or routine practice of alleging facts against persons for the purpose of charging crimes they did not commit.

101. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney's fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

AS AND FOR AN TENTH CAUSE OF ACTION
AGAINST DEFENDANT CITY FOR
VIOLATION OF PLAINTIFF'S STATUTORY
AND CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. § 1983

102. The allegations set forth in paragraphs "1" through "101" inclusive are incorporated herein as if fully set forth.

103. The direct result of the acts, omissions, and policies of Defendants acting under the color of State Law caused Plaintiff, a citizen of the United States and resident of the State of New York, to be deprived of his rights, privileges, and immunities guaranteed under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution and 42 U.S.C. § 1983.

104. The above actions of Defendants resulted in Plaintiff being deprived of the following rights protected under the United States Constitution:

- a. Freedom from illegal search and seizure;
- b. Freedom from false arrest;
- c. Freedom from unlawful imprisonment; and
- d. Freedom from loss of liberty.

105. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights protected under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution.

106. As a direct result of the acts, omissions, and policies of Defendants, Plaintiff was deprived of his rights, privileges, and immunities guaranteed under Article 1, Section 8 and Section 12 of the New York Constitution.

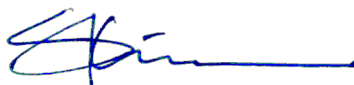
107. As a direct result of the acts, omissions, and policies of Defendants, Plaintiff was deprived of his rights, privileges, and immunities guaranteed under New York Common Law to be free from false arrest, false imprisonment, intentional infliction of emotional distress, malicious prosecution, and other injuries.

108. As a direct and proximate cause of Defendants' violations of Plaintiff's statutory and constitutional rights protected under 42 U.S.C. § 1983, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages including legal fees in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

109. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages and for Plaintiff's attorney's fees pursuant to 42 U.S.C. § 1988.

WHEREFORE, Plaintiff demands judgment against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SERGEANT DAVID FURMAN OF THE 60TH PCT, POLICE OFFICER KELLIE HUGHES OF THE 60TH PCT, AND POLICE OFFICER ELMORE MCDONALD, SHIELD NO. 19131 OF THE 60TH PCT, individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: New York, New York
November 5, 2019



Scott Kim, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
DMITRY MESENER
26 Broadway, 27th Floor
New York, New York 10004
(212) 500-3273
File No.: FA-7229-LK

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am a member of Lebedin Kofman, LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are conversations with Plaintiff, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman, LLP maintains its offices.

Dated: New York, New York
November 5, 2019



Scott Kim, Esq.